

Devendra Arya v. State of U.P.

Allahabad High Court · Division Bench · 10 September 2018 · WRIT - C No. 30661 of 2018 · **Writ disposed of as not pressed; liberty to approach under 6.5**

HEADNOTE

Counsel for the petitioner did not press the writ and sought liberty to approach the second respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for the reliefs claimed. The Division Bench disposed of the petition as not pressed, with that liberty, without examining the merits.

FACTUAL SUMMARY

Devendra Arya filed Writ-C No. 30661 of 2018 in the Allahabad High Court against the State of Uttar Pradesh and another respondent. At the hearing before the Chief Justice's Court, counsel for the petitioner stated that the writ would not be pressed and asked for liberty to approach the second respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for the reliefs claimed in the petition. The Division Bench recorded that request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

not pressed; liberty to approach licensee under 6.5

HOLDING

Where the petitioner did not press the writ and sought liberty to approach the second respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the Court disposed of the petition as not pressed, with that liberty, without deciding the claim on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Counsel for the petitioner did not press the writ and sought liberty to approach the second respondent under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for the reliefs claimed. The Division Bench disposed of the petition as not pressed, with that liberty, without examining the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RELIEFS CLAIMED IN THE WRIT PETITION

Writ disposed of as not pressed; petitioner given liberty to pursue Clause 6.5 before the second respondent. ¶ 1